

		desirability of the product and which seller knows are unknown to the buyer].) There are also no facts alleged supporting scienter, as to either misrepresentation or concealment. Rather, these elements are alleged as a conclusion only. (FAC, ¶¶ FR-2(c), (d) [misrepresentation], FR-3(c) [concealment].) The remaining elements of this cause of action appear sufficiently alleged. (FAC, ¶¶ FR-2 [misrepresentations], FR-3(a) [concealment], FR-5 [reliance], FR-6 [proximately caused damages]; “Combined Attachments: BC-1, BC-2, FR-2a, FR-2b and FR-3a,” ¶¶ 4, 5 [misrepresentations, concealed facts], 6 [reliance], 7 [proximately caused damages].) Plaintiff is granted 21 days to file a Second Amended Complaint. The Case Management Conference is CONTINUED to February 25, 2027, at 9:30 a.m. in Department C12. Moving Defendants to give notice.
4.	Sanchez vs. Newhall 25-01532093	1. Demurrer to Complaint 2. Motion to Strike Complaint 3. Case Management Conference Defendants Forrest Newhall Jr., Colleen Newhall, and Teresa Torre’s Demurrer to the Complaint is OVERRULED in part and SUSTAINED in part. The Special Demurrer for Uncertainty is OVERRULED. Special Demurrer for Uncertainty A party may demur to a complaint or a cause of action on the ground that the pleading is “uncertain.” (Code Civ. Proc. § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Errors and confusion created by “the inept pleader” are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (<i>Saunders v. Cariss</i> (1990) 224 Cal. App. 3d 905, 908.) A party attacking a pleading on “uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (<i>Fenton v. Groveland Community Services Dept.</i> (1982) 135

Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300).)

The Complaint names three individual defendants. The Newhalls contend the Complaint identifies them collectively as “Defendants” and fails to differentiate the conduct amongst the defendants. (See *Arce v. Childrens Hospital Los Angeles* (2012) 211 Cal.App.4th 1455, 1467 [trial court found plaintiffs’ claims were “uncertain” because the allegations “lump all of the defendants together, without any specification as to which defendant was responsible for what actions.]

While the Complaint at times collectively refers to the individual defendants as “Defendants” the Complaint also includes specific representations made by Forrest and Torre. Such allegations are relevant to the fraud and negligent misrepresentation claims. The other claims arise out of the Newhall’s position as landlord of the leased premises and the claims are limited to them.

Accordingly, the court finds the Complaint is not uncertain and the special demurrer for uncertainty is OVERRULED.

First Cause of Action – Fraud in the Inducement

The elements of a cause of action for fraud are: (1) misrepresentation, which includes a concealment or nondisclosure; (2) knowledge of the falsity of the misrepresentation, i.e., scienter; (3) intent to induce reliance on the misrepresentation; (4) justifiable reliance; and (5) resulting damages. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 173.) Fraud in the inducement is a subset of the tort of fraud. It occurs when the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is voidable. (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294-295.)

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Ibid. [cleaned-up].)

The Complaint alleges that “Defendants” knew or should have known of the habitability defects with the premises. (Complaint, ¶ 33.) Defendant Forrest acknowledged in writing that “the previous tenant lived there for eleven years and apparently never bothered to address [the water tray issues],” thereby admitting knowledge of the ongoing

problems that Defendants failed to remediate before leasing to Plaintiff.” (Id. at ¶ 34.) Forrest also claimed the property was professionally cleaned, denied the mold existence despite photographic evidence, and sought Plaintiff’s assistance in marketing the place to another victim. (Id. at ¶ 36.)

Such allegations are insufficient to state a claim for fraud in the inducement. After the lease was executed, Forrest allegedly stated that Torre did not address the water tray issues. However, there are no allegations to suggest he was aware of such fact prior to Plaintiff’s execution of the lease. While the premises allegedly had several habitability issues, there are no facts to suggest that Forrest had knowledge of them or that his lack of knowledge was based on anything other than perhaps negligence.

As to defendant Torre, the Complaint alleges Forrest authorized her to show the premises to prospective tenants, and that she failed to disclose the existence of serious habitability defects including water damage, mold contamination, plumbing issues, and structural deterioration that she knew or should have known existed. (Complaint, ¶¶ 21, 22.) However, there are no facts to support the conclusion that Torre “should have known” about the existence of the defects or that such defects presented a “serious habitability” issue. Moreover, there are no allegations that Torre made such representations to induce Plaintiff to sign the lease.

The Complaint is devoid of any allegations regarding Colleen other than her status as co-landlord.

Accordingly, the demurrer to the first cause of action is SUSTAINED.

Second Cause of Action – Breach of Implied Warranty of Habitability

“A warranty of habitability is implied by law in residential leases. The elements of a cause of action for breach of the implied warranty of habitability are the existence of a material defective condition affecting the premises' habitability, notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages.” (*Peviani v. Arbors at California Oaks Property Owner, LLC* (2021) 62 Cal.App.5th 874, 891 [citation modified].)

Defendants argue there is no cause of action for breach of implied warranty of habitability. Instead, they assert it is solely a defense against a landlord's claims for unlawful detainer or back rent. The Court disagrees.

Defendants have offered no arguments addressing the elements of the cause of action. On reply, they contend the court in the unlawful detainer action found no evidence of breach of habitability. But there is no evidence of such a ruling submitted with this demurrer.

Accordingly, the demurrer to the second cause of action is **OVERRULED**.

Fourth Cause of Action – Negligent Misrepresentation

“The elements of a negligent misrepresentation are (1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another's reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.

Negligent misrepresentation does not require knowledge of falsity” (*Borman v. Brown* (2021) 59 Cal.App.5th 1048, 1060 [citation modified].)

Defendants lump this cause of action with the fraud in the inducement cause of action. The demurrer does not address the elements of a claim for negligent misrepresentation.

Accordingly, the demurrer to the fourth cause of action is **OVERRULED**.

Fifth Cause of Action - Constructive Eviction

A constructive eviction generally occurs when a lessor breaches the covenant of quiet enjoyment with a disturbance of tenant's possession that renders the premises unfit for the purposes they were leased for. (*Pierce v. Nash* (1954) 126 Cal. App. 2d 606, 612–13.)

The Complaint alleges that due to mold contamination, chemical and sewage odors, fiberglass exposure, and VOC contamination, her minor child had respiratory problems and bloody noses. (Complaint, ¶ 93.) Plaintiff was compelled to vacate the premises on June 5, 2025, due to

the safety hazards posed by the premises and Defendants dismissive response.

Such allegations are sufficient to state a cause of action for constructive eviction. Accordingly, the demurrer to the fifth cause of action is **OVERRULED**.

Sixth Cause of Action – Nuisance

A nuisance is a substantial and unreasonable interference with the use and enjoyment of land. (Civ. Code § 3479.) It requires an interference with the property itself (e.g., noise, odor, vibration).

Here, Plaintiff has alleged chemical and sewer odors, among other things, that forced her to vacate the premises. This is sufficient to allege a nuisance.

Accordingly, the demurrer to the sixth cause of action is **OVERRULED**.

Seventh Cause of Action - Violation of Civil Code §§ 1941.1, 1942.4, 1942.5

Civil Code § 1941.1 is the “implied warranty of habitability statute and requires landlords to keep rental properties safe, sanitary and fit for living.

Civil Code § 1942.4 penalizes landlords who demand or collect rent for substandard residential properties if the conditions have existed and have not been abated 35 days beyond the date of service of notice by a “public offer or employee who is responsible for the enforcement of any housing law.” (Civ. Code § 1942.4(a)(3).)

Civil Code § 1942.5 prohibits landlords from retaliating against tenants for lawfully exercising their rights. If a landlord attempts to evict the tenant within 180 days of the tenant’s repair request, the law automatically presumes the landlord is acting in retaliation.

Paragraphs 105 and 107 set forth specific facts to support the Newhall’s alleged violation of sections 1941.1 and 1942.5.

Paragraph 106 does not allege a housing/code enforcement official inspected the premises and issued a written notice for habitability violations that the landlord failed to cure. Therefore, Plaintiff has failed to state a claim for violation of Section 1942.5.

A demurrer must dispose of an entire cause of action to be sustained. (*Thompson v. Spitzer* (2023) 90 Cal.App.5th 436, 451-452.) In this case, however, the seventh cause of action is a catchall cause of action entitled “Statutory Violations” and lists three separate statutes that have allegedly been violated. The Court elects to treat each alleged statutory violation as its own cause of action.

Accordingly, the demurrer to the seventh cause of action as to violation of Civil Code §§ 1941.1 and 1942.5 is OVERRULED. The demurrer to the seventh cause of action as to violation of Civil Code § 1942.4 is SUSTAINED.

Eighth Cause of Action – IIED

To state a cause of action for Intentional Infliction of Emotional Distress (“IIED”), the plaintiff must allege: (1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 161.) For conduct to be outrageous for purposes of IIED, the conduct must be so extreme as to exceed all bounds of that usually tolerated in a civilized society. (*Id.*) In addition, “[the defendant’s] conduct [must be] directed at the plaintiff or occur in the presence of a plaintiff of whom the defendant is aware.” (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

As stated above, there are no allegations that the Newhalls were aware of the habitability defects at the premises prior to Plaintiff moving in. Yet even assuming they should have been aware, there are no facts to suggest such ignorance was outrageous.

Accordingly, the demurrer to the eighth cause of action is SUSTAINED.

MOTION TO STRIKE

Defendants Forrest Newhall Jr. and Colleen Newhall Motion to Strike is GRANTED.

The Newhalls move to strike Plaintiff’s request for punitive and exemplary damages.

Code of Civil Procedure section 436 provides, “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”

A motion to strike may be used to remove a claim for punitive damages that is not adequately supported by the facts alleged in the complaint. (*Cryolife, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1145; *Kaiser Foundation Health Plan, Inc. v. Superior Court* (2012) 203 Cal.App.4th 696.) Civil Code section 3294 states that, “In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code, § 3294, subd. (a).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).)

Based on the Court’s ruling on the demurrer, Plaintiff has failed to allege facts that the Newhalls acted with oppression, fraud or malice.

Accordingly, the motion to strike is GRANTED.

Plaintiff has 21 days leave to amend.

The Case Management Conference is CONTINUED to February 25, 2027, at 9:30 a.m. in Department C12.

Moving Party shall give notice of this ruling.